

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 12/04/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02125
CASE NAME: SAVANNAH THOMPSON VS. JOHN MUIR HEALTH
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT
(CONTINUED FROM: 11.13.2025)
FILED BY:
TENTATIVE RULING:

Plaintiff Savannah Thompson moves for preliminary approval of her certified class action settlement with defendant John Muir Health Inc. The case arises from allegedly unconscionable charges for a diagnostic urine test established by use of the "Chargemaster." After an emergency room visit at John Muir Hospital, plaintiff was charged \$6,095 for the test, known as "Lab Drug Screen Urine." Plaintiff brought this action for alleged violations of the Consumer Legal Remedies Act, the Rosenthal Fair Debt Collections Practices Act, and the Unfair Competition Law.

The certified class consists of 289 members who received medical services at John Muir Hospital Emergency Department between October 14, 2018 and December 31, 2022, including the test in question, who had Kaiser insurance or were uninsured, and were held financially responsible by John Muir for the services in an amount beyond a flat fee insurance deductible. The “Rosenthal Subclass” consists of 63 class members who on or after October 4, 2021 received bills for the medical services that stated their accounts were past due.

The matter was first heard on November 13, 2025, but was continued to this date in order to address two concerns of the Court. As will be noted below, the two matters have been addressed.

A. Background and Settlement Terms

The parties engaged in formal discovery. They reached a settlement after arms-length negotiations, without the assistance of a mediator.

Class members will receive a credit for the extra charge from applying the “Chargemaster” billing amount. That amount will be applied to the outstanding bill, which may include other services. Where the class member has an outstanding bill, they will receive a credit. Where there is no outstanding bill, or the balance is less than the credit amount, the class member will receive a cash payment. Applying this formula to the 289 class members, the total benefit will be \$696,266.39, consisting of \$59,483 in cash refunds and \$636,783.17 in credits.

Members of the Rosenthal subclass also will receive a statutory penalty of \$750 each.

In addition, the settlement includes an injunction that requires John Muir to reduce the Chargemaster price for this test through 2027.

If there are uncashed refund checks issued, they will be paid to a cy pres recipient, specifically Bay Area Legal Aid. In order for such a cy pres payment to be made, counsel must address the requirements for cy pres payments as required by Code of Civil Procedure sections 382.4 and 384(b). Counsel also is required to attest that they do not have any pecuniary interest in the cy pres recipient, and must “notify the court if the attorney has a connection to or a relationship with a nonparty recipient of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or thing of value and the interests of the class.” (CCP § 382.4.) The declaration must be provided “in connection with the hearing for preliminary approval[.]” (.) On November 18, 2025, counsel filed a declaration meeting the requirements of the statute. In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided “to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent[.]” Bay Area Legal Aid meets that requirement.

The Court also was concerned that under Paragraph 31 of the settlement, the trigger date on being “unable to distribute any Class Member money” is six months from the Effective Date. Typically, such a date is a given number of days after issuance of the check. On November 24, 2025, counsel provided a stipulated amendment to the settlement that sets forth that the trigger date for cy pres distribution shall occur no sooner than 180 days after the checks are first mailed. That sufficiently addresses the Court’s concern.

The class will be given mail notice. A settlement website will be maintained. The settlement

administrator shall “use its expertise and best judgment” to redeliver any retained mail notices. The class members will be required to file a claim. Class members may object or opt out of the settlement. The administrator’s compensation would not exceed \$15,000, and would be paid by John Muir.

The settlement contains release language, which provides that the class members release “any and all claims arising out of, concerning, or related to JMH’s pricing of the Service[.]” (Settlement, Par. 17.) Under recent appellate authority, the limitation to those claims arising from “JMH’s pricing of the Service” is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Plaintiffs’ counsel will seek, by motion, attorney’s fees and litigation costs not to exceed \$600,000, which would be paid separately by defendant. Defendant does not agree not to oppose the fee application. The named plaintiff seeks a service award in the amount of \$3,629.90. This equals her balance after application of the credits under the settlement. These fees, plus the costs of claims administration and the costs of class notice, will be paid by John Muir.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff will seek no more than \$600,000 in attorney’s fees. The basis for this amount is not stated. Often in class actions, the amount sought is a percentage of a common fund. There is no identified fund here, however. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used

should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Under these circumstances, it appears that a lodestar analysis would be appropriate.

Similarly, the requested representative payment of \$3,629.90 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that, with the two supplements to the record, the proposed agreement is sufficiently fair, reasonable, and adequate to justify preliminary approval, and the motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the items in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. Once the cy pres amount is determined, the judgment must be amended to so reflect. (CCP § 384.5.)

2. 9:00 AM CASE NUMBER: C23-00688

CASE NAME: BROUWER VS. REDWOOD HOLDINGS, LLC

***HEARING ON MOTION IN RE: TO DIMISS CASE PURSUANT TO 08/04/23 COURT ORDER**

FILED BY: REDWOOD HOLDINGS, LLC

TENTATIVE RULING:

Defendant Redwood Holdings, LLC moves for entry of a dismissal of plaintiff’s complaint pursuant to Code of Civil Procedure section 581(f)(2), which provides for dismissal” after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” On July 27, 2023, the court sustained defendant’s demurrer to the entire complaint, with leave to amend. The minute order specified that any amended complaint was to be served and filed by August 7, 2023.

On July 27, 2023, plaintiff filed a notice of appeal (according to the Court of Appeal docket).

The order after hearing, entered August 4, 2023, stated that plaintiff’s last day to serve and file an amended complaint would be August 7, 2023. Notice of ruling was served August 4, 2023 and filed August 7, 2023. This was ten days from the court’s decision. The time to respond to the Court’s order, however, does not begin to run until notice of entry of order. Ten days from notice of entry of the order would be August 14, 2023.

On August 21, 2024, at a Case Management Conference, the minutes reflect that “Counsel Shalaby requests the court proceed on the matter despite the appeal as there are narrow issues not raised on appeal.” The minutes further state that “The Court refrains from proceeding at this time.” The Court

continued to hold Case Management Conferences during the appeal, but did nothing of substance, other than to appoint a Guardian ad Litem for the plaintiff

The Court of Appeal affirmed, and remittitur was issued July 17, 2025 (according to the Court of Appeal docket).

Defendant filed the pending motion July 28, 2025.

On October 13, 2025, plaintiff filed a First Amended Complaint.

Although plaintiff did not file an amended complaint by the initial August 7, 2023 deadline, she had filed an appeal on July 27, 2023, which had the effect of staying the proceeding immediately. (CCP § 916.) The Court's subsequent order of August 22, 2024, in which it "refrain[ed] from proceeding at this time" simply confirmed the existence of the stay.

Plaintiff's reliance on *Gilmed v. General Motors Corp* (1994) 26 Cal.App.4th 824, is misplaced, because in that case the plaintiff had already filed an amended complaint before the motion to dismiss was filed.

When the Court of Appeal issued its remittitur, the deadline to file an amended complaint was not clear. The originally specified date had long since passed. Arguably, this means that the "ten day" rule of CRC 3.1320(g) (which applies where the order does not specify time to amend) applied. Defendant filed this motion on the eleventh day after the remittitur was issued.

The decision to grant or deny a party's motion to dismiss is within the judge's discretion. (*Nuno v. California State Univ., Bakersfield* (2020) 47 Cal.App.5th 799, 807. Based on the long period during which the appeal was pending, and the fact that defendant filed this motion on the eleventh day after the remittitur, the Court exercises its discretion to deny the motion. Defendant has 30 days to file a pleading in response to the First Amended Complaint.

3. 9:00 AM CASE NUMBER: C23-02106
CASE NAME: SANTIAGO MORALES VS. DWELLEY FAMILY FARMS, LLC

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**

FILED BY: MORALES, SANTIAGO MERINO

TENTATIVE RULING:

Plaintiff Santiago Merino Morales moves for preliminary approval of his class action and PAGA settlement with defendant Dwelley Family Farms, LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on August 23, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims (based on a notice to the LWDA given on August 23, 2023), was filed on October 26, 2023. A Second amended Complaint was filed on

March 21, 2024, and remains the operative complaint.

The settlement would create a gross settlement fund of \$321,860. The class representative payment to plaintiff would be \$7,500. Attorney's fees would be \$107,286.67 (one-third of the settlement). Litigation costs would not exceed \$20,000. The settlement administrator's costs would be up to \$10,000. PAGA penalties would be \$15,000, resulting in a payment of \$11,250 to the LWDA and \$3,750 to the aggrieved employees. The net amount paid directly to the class members would be about \$162,073.33. The fund is non-reversionary. Based on the estimated class size of 388, the average net payment for each class member is approximately \$417.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed 180 days after mailing will be voided, and the funds will be provided to the State Controller's Unclaimed Property Fund. (The moving parties identify the Justice Gap Fund of the State Bar as a cy pres recipient "in the event the Court requires the Parties to identify a cy pres recipient of uncashed checks[.]" The Court does not so require.)

The settlement contains release language covering all "those claims arising out of or related to the allegations set forth in the operative complaint[.]" (Settlement, Par. 1.34.) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken, and a data expert was retained for mediation. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary

and oppressive, or confiscatory.”])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval.

Similarly, the requested representative payment of \$7,500 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grants the motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. DOES 1 THROUGH 10, INCLUSIVE
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT (CONTINUED FROM 10.30.2025)**
FILED BY:
TENTATIVE RULING:
Appearance required, pending submission of signed agreement.

5. 9:00 AM CASE NUMBER: C24-00695
CASE NAME: JULIUN SKALIN VS. ENCHANT CHRISTMAS, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

6. 9:00 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
***HEARING ON MOTION IN RE: AN ORDER DESIGNATING CASE COMPLEX**
FILED BY: JURADO, ANTHONY
TENTATIVE RULING:

Defendant Anthony Jurado's Motion for an Order Designating Case as Complex is **denied**.

Background

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy alleges that debris, fill material, and other man-made materials from Defendant Anthony Jurado's property were discharged into the creek, altered the flow of water, and caused erosion and damage to his property. The complaint includes causes of action for negligence, trespass, private and public nuisance, premises liability, and equitable indemnification, and seeks both damages and injunctive relief requiring cleanup and restoration of the creek. On September 13, 2024, Jurado filed a cross-complaint against Clancy asserting claims for indemnity, contribution, and declaratory relief, alleging that any damages Clancy sustained were caused primarily by Clancy or others and that Jurado is entitled to reimbursement or allocation if he is found liable.

On August 1, 2025, Plaintiff moved for leave to file a first amended complaint to conform his pleading to proof. The proposed amended pleading adds several negligence causes of action premised on alleged violations of the California Water Code and Contra Costa Municipal Code and a declaratory relief cause of action, joins Paula Jurado as a co-owner defendant, supplements factual allegations with information obtained in discovery, and corrects clerical errors.

Jurado now moves to designate this case as complex under California Rules of Court rule 3.400 and 3.403(b), asserting that Plaintiff's request for injunctive relief requiring removal of debris, remediation of contaminants, and stabilization of the creek bed will require coordination with several regulatory agencies, including the California Department of Fish and Wildlife, the San Francisco Bay Regional Water Quality Control Board, and the U.S. Army Corps of Engineers. Jurado further asserts that the case involves complex factual and legal issues relating to severe storm events in 2022–2023, creek-bank erosion, and potential liability for conditions created by others.

Clancy opposes the motion, arguing that the matter is a straightforward two-party dispute involving common tort law theories and no factor supporting complex designation is implicated.

Analysis

A "complex case" is "an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." (Cal. R. Ct. 3.400(a).) Cases involving certain types of claims are deemed "provisionally" complex. (Cal. R. Ct. 3.400(c).)

CRC 3.400(b) requires that courts consider the following factors when determining whether an action should be designated as complex: (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; (2) Management of a large number of witnesses or a substantial amount of documentary evidence; (3) Management of a large number of separately

represented parties; (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or (5) Substantial post judgment judicial supervision. (Cal. R. Ct. 3.400(b).)

The claims in this case do not fall within any of the provisionally complex categories and Defendant does not argue that the claims at issue are provisionally complex. None of the rule 3.400 factors or any other consideration persuades the court that that this case is complex.

1. The Case Does Not Involve Numerous Pretrial Motions Raising Difficult or Novel Legal Issues That Will be Time Consuming to Resolve

Much of the motion is devoted to enumerating legal and evidentiary issues Defendant states it intends to raise. (Motion pp. 9–11.) Specifically, Defendant argues the case should be designated complex because “[n]umerous regulatory agencies are asserting jurisdiction over the creek bed,” which Defendant suggests may “limit or even foreclose the Court’s jurisdiction to award any relief...that involves any modification to the creek bed, or even the creek banks,” asserting that the Court would “exceed its jurisdiction” if it issued an order inconsistent with federal or state regulatory authority. The motion characterizes these questions regarding the court’s ability to grant injunctive relief affecting a regulated watercourse as novel or complex legal issues warranting complex-case designation. Nothing in the motion, however, explains why determining the scope of the court’s own equitable authority presents an issue of exceptional judicial management. The question of what relief the court may issue is a routine matter, not a basis for treating the case as complex.

Defendant then argues the case should be designated complex because it purportedly raises numerous “unique” legal and factual issues that will require extraordinary pretrial management, including multiple duty determinations, such as whether Jurado may be liable for conditions created by a prior owner, whether he owes a duty to maintain or stabilize the creek, whether responsibility for creek clearing or restoration rests with one property owner or the other, and whether the property line affects the respective duties of the parties. The motion also lists a series of statutory-construction questions concerning whether Plaintiff falls within the protected class for various statutory schemes, including the Porter-Cologne Act, the Contra Costa Municipal Code, the Clean Water Act, as well as whether agricultural zoning will entitle Plaintiff to attorney’s fees. Defendant identifies prospective issues for summary-adjudication (such as punitive damages and treble-damages claims under Civil Code section 3346) and raises evidentiary questions relating to expert testimony, causal proof, and the sufficiency of Plaintiff’s observations regarding debris in the creek. The motion asserts that these matters will require pretrial motions or “mini-trials,” and justify complex-case designation. Many of these same issues appear in Defendant’s opposition to the motion to amend and will presumably be raised again by demurrer, underscoring that they are routine law and motion matters that do not warrant complex-case treatment. Nor does the prospect of expert opinions about erosion or a “100-year storm” make this case complex; courts regularly manage expert discovery on similar topics in cases such as this.

Although described as unique, the issues Defendant identifies in the motion are ordinary merits questions resolvable through standard pretrial motion practice, and do not suggest the kind of

difficult or novel issues contemplated by rule 3.400(b)(1).

2. The Remaining Rule 3.400(b) Factors Are Not Implicated

Because Defendant does not contend that any of the remaining Rule 3.400(b) factors apply, the Court addresses Factors 2 through 5 together. There is no indication that the case will involve management of an unusually large number of witnesses or a substantial volume of documents beyond what is typical in a tort or property-damage case. (Rule 3.400(b)(2).) There are only two parties to the litigation, and even if the pending motion to amend results in an additional defendant, the case will still involve only two sides represented by two law firms. (Rule 3.400(b)(3).) Defendant does not identify any related actions whose coordination would be required, and none appear to exist. (Rule 3.400(b)(4).) Finally, while Plaintiff seeks injunctive relief, nothing suggests that post-judgment enforcement would require ongoing judicial supervision of the type contemplated by Rule 3.400(b)(5).

3. Defendant's Late-Filed Reply Does Not Change The Result

Under CCP section 1005(b), Defendant's reply was due five court days before the December 4 hearing, that is, by November 25, 2025. Defendant did not file the reply (or the accompanying errata attaching previously omitted exhibits) until December 1, 2025. Although the Court could decline to consider the untimely filing, it has reviewed the submission here and concludes that it does not alter the analysis.

The reply does not identify any new issues bearing on complex designation. It identifies no additional pretrial motions raising difficult or novel legal issues, no expanded witness or document load, no additional parties, and no need for coordination with related actions. Nor does it show that post-judgment supervision would be anything other than ordinary enforcement of injunctive or monetary relief. The reply reiterates arguments regarding storm damage, debris, agency communications, and alleged dumping by a predecessor owner. Defendant asserts as a new matter that Plaintiff has been "unwilling" to participate in agency-encouraged remediation efforts. However, a party's alleged lack of cooperation in informal remediation discussions is not a basis for complex designation and does not suggest that this case requires exceptional judicial management.

Conclusion

Based on the Rule 3.400 factors and the totality of the circumstances, the Court concludes that this action does not require complex-case treatment. The motion is therefore denied.

7. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
HEARING IN RE: MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES & REQUESTS FOR PRODUCTION & WAIVE OBJECTIONS
FILED BY:
TENTATIVE RULING:

Defendant Guatam Patil moves to compel responses to Special Interrogatories (Set One) and Requests

for Production (Set One) and to waive objections.

Defendant served Special Interrogatories (Set One) on June 5, 2025. Based on mail service, responses were due July 10, 2025. Defendant agreed, via email to extend the deadline July 19. On July 18, plaintiff sent responses by electronic service. Defendant argues that the email response, given no express agreement to accept electronic service, was the equivalent of no response. Therefore, he had no duty to meet and confer about the responses, and is entitled to responses without objection. Defendant filed this motion on July 30. Defendant's exhibit C shows that the parties communicated by email concerning the discovery. In sending the responses, Plaintiff states that they are sent "[p]ursuant to our agreement to accept service via email[.]"

An unrepresented party may consent to electronic service, by serving notice on all parties and filing the notice with the court (CCP § 1010.6(c)(2).) Plaintiff filed a consent to electronic service on June 27, 2025. Defendant filed a consent to electronic service with the court on June 4, 2025. Although the court file does not apparently contain a proof of service of the consent, service is for the benefit of the other party, and defendant cannot rely on his own failure to serve the filed document.

The motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-03170
CASE NAME: MARIE DUFFY VS. FCA US, LLC.
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: FCA US, LLC.
TENTATIVE RULING:

Before the Court is a demurrer by FCA US, LLC to Plaintiffs' first amended complaint. For the reasons set forth, the Court rules as follows: (a) demurrers to the first through fourth causes of action and sixth cause of action – **sustained, with leave to amend**; and (b) demurrer to fifth cause of action - **overruled**.

Background

This action involves claims for defects in a 2022 Dodge Charge vehicle manufactured by defendant FCA US LLC. (First Am. Compl. ("FAC") ¶¶ 9, 12, 14.) Plaintiffs allege that on or about June 29, 2022, they "entered into" a written warranty with FCA covering the vehicle. (FAC ¶ 9.) Plaintiffs allege the defendant's vehicle has a 6.4L engine which is defective. (FAC ¶¶ 12, 14.) They allege the vehicle had other defects as well, that they presented the vehicle multiple times to FCA's authorized repair facilities, that the repair facilities twice kept the vehicle for over a month, but that the repair facilities have been unable to fix the engine defects. (FAC ¶¶ 14- 16.)

The operative FAC includes six causes of action. The first four causes of action allege violations of the Song-Beverly Consumer Warranty Act, Civil Code section 1790 *et seq.* ("Song-Beverly Act"), including breach of the express warranty and breach of the implied warranty of merchantability. The fifth cause of action alleges violation of the Magnuson-Moss Warranty Act, 15 U.S.C. section 2301 *et seq.* ("MM Act"), and the sixth cause of action alleges a claim for fraudulent inducement and/or fraudulent concealment. FCA has demurred to each of the six causes of action.

Legal Standards for Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (*See also City of Dinuba v. County of Tulare* (2007) 41 Cal.4th 859, 865.) The Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.) In ruling on the demurrer, the Court considers only the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." [Citation omitted.] (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Analysis

A. Demurrers to Song-Beverly Act Causes of Action

FCA asserts both a general demurrer and demurrer for lack of jurisdiction to the first through fourth causes of action. FCA contends that Plaintiffs have not alleged that their vehicle was sold in this state, which is essential to state these causes of action, as the Song-Beverly Act only applies to vehicles sold in this state. FCA asserts in its memorandum that the vehicle was actually sold out of state (in Arizona). The Court does not consider that assertion in ruling on the demurrer as it is outside the pleadings and not a matter subject to judicial notice (nor has FCA made a request for judicial notice). (*Blank v. Kirwan, supra*, 39 Cal.3d at 318.)

Plaintiffs allege that they purchased the vehicle from Airpark Dodge Chrysler Jeep, but they do not allege where that dealership is located. (FAC ¶ 11.) They make a series of allegations that the vehicle is "consumer goods," Plaintiffs are "buyers," and FCA is a "manufacturer" or "distributor" within the meaning of the Song-Beverly Act, but they do not allege that the sale of the vehicle, within the meaning of the Song-Beverly Act, was made in this state. (FAC ¶ 17; Civ. Code §§ 1791(n)(1) [sale means "passing of title from the seller to the buyer for a price"], 1792 [sale of consumer goods "that are sold at retail in this state" shall include manufacturer's implied warranty of merchantability], 1793.2 [duties of manufacturer as to express warranty applicable to "goods sold in this state"].)

Case law binding on the Court is clear that the application of the Song-Beverly Act is limited to vehicles sold in California. (*Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 487-491, 493 ["Although the Act treats motor vehicles differently from other types of consumer goods in several ways, we find no indication that the Legislature intended to treat motor vehicles differently with respect to the limitation on the Act's coverage to goods sold in California," "the Legislature intended the Act to apply only to vehicles sold in California," and "the Legislature contemplated that the Act would apply only if the goods were purchased in California"]; *Davis v. Newmar Corp.* (2006) 136 Cal.App.4th 275, 278 ["Davis argues that because he negotiated the sale of the motor home in California, pursuant to a contract governed by California law, he can pursue a claim under the Act, even though he took delivery of the motor home in Nevada. We disagree. Under California law, title to the motor home passed upon delivery—in Nevada. [Citations omitted.] Because title passed outside of California, the Act does not apply. [Citation omitted.]"].)

Plaintiffs do not dispute the legal proposition that the Song-Beverly Act generally applies only to a vehicle sold in California. In opposition to the demurrer on this point, Plaintiffs instead argue that the "pleadings do not disclose that the Song-Beverly Act does not cover the vehicle." (Opp. p. 13.) As set forth above, statutory causes of action must be pled with specificity; the facts necessary to meet each requirement of the statute to state the statutory claim must be alleged, which in this case includes that the vehicle was sold in California or title to the vehicle transferred to Plaintiffs in California (Civ. Code § 1791(n)(1)). (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) The FAC does not include that essential factual allegation showing that the Song-Beverly Act does apply to the vehicle to make Plaintiffs' claims under the statute viable.

Plaintiffs also argue the Song-Beverly Act applies to some vehicles sold out-of-state, citing Civil Code section 1795.8. That statute provides that the Song-Beverly Act can extend to the sale of a motor vehicle to a member of the Armed Services even though the vehicle is purchased in another state if the two conditions of the statute are met with respect to the sale, including that the "member of the Armed Forces was stationed in or a resident of this state at the time he or she purchased the motor vehicle or at the time he or she filed an action pursuant to this chapter." (Civ. Code § 1795.8(a) and (b).) Plaintiffs have not alleged any facts showing the provisions of Civil Code section 1795.8 apply to Plaintiffs, the vehicle, and this lawsuit.

On these grounds, the demurrers to the first through fourth causes of action are **sustained, with leave to amend**. If Plaintiffs can truthfully allege additional facts regarding where the vehicle was sold, where title to the vehicle was transferred to Plaintiffs, or that the conditions of Civil Code section 1795.8, then they will have an opportunity to amend the FAC to do so to try to state these causes of action.

B. Demurrer to the Magnuson-Moss Act Cause of Action

Title 15 section 2310(d) of the Magnuson-Moss Act provides in pertinent part: "Subject to subsections (a)(3) [informal settlement procedure] and (e) [class actions], a consumer who is damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under this title, or under a written warranty, implied warranty, or service contract, may bring suit for damages and other legal and equitable relief—[¶] in any court of competent jurisdiction in any State" (15 U.S.C. § 2310(d)(1)(A) [emphasis added].) The Ninth Circuit has interpreted this provision to mean that "the Magnuson-Moss Warranty Act creates a federal private cause of action for a warrantor's failure to comply with the terms of a written warranty." (*Milicevic v. Fletcher Jones Imps., Ltd.* (9th Cir. 2005) 402 F.3d 912, 917.) (See also *Romo v. FFG Ins. Co.* (C.D. Cal. 2005) 397 F. Supp. 2d 1237, 1241 also cited by Plaintiffs [stating "there is nothing to support the notion asserted by Defendant that the Magnuson-Moss Act adopts the substance of underlying state law in addition to the scope of remedies. . . . Congress did provide for a substantive right of action in the provisions of the Act, and it would frustrate congressional purpose to circumscribe the scope of that protection because state law is less expansive."].)

Defendant's argument that the fifth cause of action under the MM Act fails because it is dependent on Plaintiffs' claim for breach of the implied warranty alleged in paragraph 60 of the FAC both inaccurately describes the allegations of the fifth cause of action and is unsupported by any legal authority. (MPA ISO Dem. p. 12, ll. 6-12.) The FAC actually cites both the express written warranty and

implied warranties as the basis for the MM Act claim. (FAC ¶¶ 9, 10, 14-20, 64, 68.)

In its reply, Defendant does not address the authorities cited by Plaintiffs in support of their position that the MM Act provides a substantive private right of action against a warrantor for noncompliance with the terms of a written warranty. Defendant merely reiterates its position that an MM Act claim is derivative of the state law claims and only provides relief where a valid state law warranty claim exists, propositions Defendant again fails to support with citation to any legal authority. (Reply. P. 9, ll. 7-11.)

The Court is not inclined to sustain a demurrer based on legal arguments unsupported by any legal authority in defendant's briefing. (*Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Mattco Forge, Inc. v. Arthur Young & Co.* (1997) 52 Cal. App. 4th 820, 850 ["In a page and a half, and with citation to but one case for the general proposition the conduct was despicable, [Cross-Appellant appeals] from the granting of the directed verdict motion. This cursory treatment requires no discussion by us."].) The demurrer to the fifth cause of action is therefore **overruled**.

C. Demurrer to the Sixth C/A – Fraudulent Inducement/Fraudulent Concealment

"In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler v. Berg, Inc.* (2017) 7 Cal.App.5th 276, 311.) The essential elements of a fraudulent concealment cause of action are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. [Citation, internal quotation marks omitted.]" (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850.) (See also *Bigler-Engler, supra*, 7 Cal.App.5th at 310-311.)

The facts stating the essential elements of a fraud cause of action must be pleaded with specificity such that the plaintiff must allege "facts which 'show how, when, where, to whom, and by what means the representations were tendered.'" [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The specificity standard for alleging a fraud claim takes into account the difference between a fraud claim based on affirmative misrepresentations and one based on concealment. (*Alfaro v. Community Housing Improvement System and Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 ["[I]t is harder to apply this rule to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?' "].) "Less specificity should be required of fraud claims 'when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy," [citation]; "[e]ven under the strict rules of common law pleading, one of the

canons was that less particularity is required when the facts lie more in the knowledge of the opposite party" [Citation omitted.]" (*Id.* at 1384.)

1. Economic Loss Rule

FCA contends the *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 decision supports that the economic loss rule bars the fraudulent inducement/fraudulent concealment claim. "The economic loss rule provides that, '[i]n general, there is no recovery in tort for negligently inflicted "purely economic losses," meaning financial harm unaccompanied by physical or property damage.' [Citation omitted.] For claims arising from alleged product defects, '[e]conomic loss consists of []damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property[]' [Citation, internal quotation marks omitted.]" (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 837.)

The Court in *Rattagan* explained that the economic loss rule is a "specific application" of the "independent tort principle" doctrine differentiating between contract and tort obligations, which it describes in exhaustive detail. (*Rattagan, supra*, 17 Cal.5th at 37.) "[T]ort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (*Id.* at 20-21.) "[T]o be held liable in tort, a defendant must commit a tort. If all the defendant has allegedly done is violate the terms of the parties' contract, depriving the plaintiff of the benefits the contract ensures, the defendant's liability is limited by the contract. Broader tort liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties." (*Id.* at 37.)

Rattagan holds claims grounded in fraudulent concealment are not barred by the economic loss rule, to the extent the concealment violates an independent legal duty and is not based solely on a breach of the contract terms. (*Rattagan, supra*, 17 Cal.5th at 30-38 [explaining the *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979 decision] and 42-45 [holding economic loss rule does not bar claim for fraudulent concealment, not just claim for fraud based on affirmative misrepresentations].) FCA contends that the *Rattagan* decision controls to the extent *Dhital* is inconsistent. Though the California Supreme Court granted review in *Dhital*, it dismissed the petition for review after it issued its decision in *Rattagan* and explicitly did not address the issues raised in *Dhital*. (*Rattagan, supra*, 17 Cal.5th at 41, fn. 12.)

Plaintiffs point out that neither *Rattagan* nor *Robinson* involved a claim of fraud in the inducement. Rather, they both involved fraud arising after the contract was entered into and during the performance of the contract. (See *Rattagan, supra*, 17 Cal.5th at 38, 40 ["[F]rom a policy standpoint, there is no logical reason to distinguish among various species of actionable fraud committed while otherwise performing a contract, assuming the tort elements can be established independently of the contractual rights and obligations"].) The Court agrees those decisions address a different theory than what is pled in the FAC and that the *Dhital* decision directly addresses the fraudulent inducement/fraudulent concealment alleged by Plaintiffs.

In *Dhital*, the Court in *Dhital* recognized that there must be a violation of an independent tort duty for the fraudulent inducement exception to the economic loss rule to apply, and the Court held the complaint stated the fraud cause of action in that case, at least at the pleading stage. (*Dhital, supra*, 84 Cal.App.5th at 833, 844-845.) "In our view, that independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions that were agreed to." (*Id.* at 841 [emphasis added].) Based on *Dhital* and *Rattagan*, the economic loss rule does not necessarily bar the fraudulent inducement/fraudulent concealment claim.

2. Transactional Relationship and Harm Not Reasonably Contemplated When Contract Was Formed

Bigler-Engler holds that the "necessary relationship giving rise to a duty to disclose" involves a " 'transaction' " between the plaintiff and defendant which the Court held did not exist in that case. (*Bigler-Engler, supra*, 7 Cal.App.5th at 311, 314.) The facts of *Bigler-Engler* are distinguishable, as the medical device in that case was prescribed by a doctor for the plaintiff as part of her post-surgical care, and the device was rented to the plaintiff by a third party surgery center which owned the device. (*Id.* at 314.)

The Court in *Dhital* found the complaint sufficiently alleged a transactional relationship between the car buyer and the manufacturer by alleging the dealership was the manufacturer's agent for the sale of the vehicle. (*Dhital, supra*, 84 Cal.App.5th at 834, 844.) The Court rejected Nissan's argument that the plaintiffs there did not adequately plead a buyer-seller transactional relationship to state a fraudulent inducement/fraudulent concealment claim at least at the pleading stage because the plaintiffs alleged "that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers." (*Id.* at 844.) The FAC alleges that Airpark Dodge Chrysler Jeep is an FCA authorized retail dealership (FAC ¶ 11), which is not the same as an allegation that the dealership is FCA's agent and was acting as FCA's agent in the sale of the vehicle to Plaintiffs.

Plaintiffs also cite *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094 as "on point" (Opp. p. 7, l. 3), but in *Bader*, there was undisputed evidence that the defendant "was involved in retail sales of [the product] to consumers and profited therefrom," facts which are not alleged in the FAC. (*Id.* at 1132-1133.) Though Plaintiffs allege they "entered into" the express warranty with FCA, it is not clear whether Plaintiffs are alleging they entered into a direct transaction with FCA through the express warranty, or whether they received the warranty only because it accompanied the vehicle when they purchased the car from the dealership where they bought the vehicle. (*Compare* FAC ¶ 9 to FAC ¶ 11 and Exh. A.) (*See also Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1134-1135 ["Even though a buyer may receive a manufacturer's warranty because it bought a manufacturer's car from a dealer, 'nothing in the California Uniform Commercial Code suggests that this automatically makes the manufacturer's warranty a part of the sale contract between the buyer and the dealership.' [Citation omitted.]"]].)

3. Failure to Allege Claim with Specificity

Given the specificity requirement for pleading fraudulent inducement/fraudulent concealment, FAC fails to sufficiently allege facts to state the existence of a transactional relationship between Plaintiffs

and FCA for the reasons stated. There is an arguable conflict between the allegations in paragraphs 9 and 11 of the FAC (and the warranty attached as Exhibit A to the FAC, which on its face bears no indication of any direct dealing between Plaintiffs and FCA rather than the written warranty merely accompanying the vehicle). The FAC does not include factual allegations regarding the dealership's agency relationship found sufficient in *Dhital* or the involvement of FCA in retail sales and its profiting from those sales as in *Bader*. Other allegations by Plaintiffs in support of this cause of action are similarly generic and vague, even as to facts that should be within their own knowledge and that may well not be known to FCA, including the "sales representatives" Plaintiffs conferred with before buying the vehicle (FAC ¶¶ 12, 83), and the "marketing and advertising materials" and "materials disseminated by FCA concerning FCA Vehicles" Plaintiffs allegedly reviewed before they purchased the car. (FAC ¶¶ 12, 83.) Plaintiffs may be able to allege those specific facts, but the FAC does not do so.

On these grounds, the demurrer to the sixth cause of action is **sustained, with leave to amend**.

9. 9:00 AM CASE NUMBER: C24-03170

CASE NAME: MARIE DUFFY VS. FCA US, LLC.

*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT
FILED BY: FCA US, LLC.

TENTATIVE RULING:

Before the Court is a motion by FCA US, LLC to strike Plaintiffs' first amended complaint. For the reasons set forth, the motion is **granted, with leave to amend**. Paragraph f of the Prayer for Relief of the first amended complaint is stricken, subject to Plaintiffs' right to amend pursuant to this ruling and the concurrent ruling on the FCA demurrer.

Background

The relevant factual background is set forth in the Court's concurrent ruling on FCA's demurrer to the first amended complaint ("FAC").

Legal Standards for Striking Punitive Damages and Analysis

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Under Civil Code section 3294, "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (Civ. Code § 3294(a).) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for

punitive damages, nor are conclusory allegations that merely parrot the language of the statute. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166; *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Fraud, oppression and malice necessary to support punitive damages are each defined in Civil Code section 3294(c). The Court has concluded the allegations of the sixth cause of action of the FAC are insufficient to state the claim for fraudulent inducement/fraudulent concealment.

The definition of "malice" under Civil Code section 3294(c)(1) was amended in 1987 and is now defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Emphasis added.) (*See also generally Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159-1160 [explaining the "malice requirement has evolved over time"].) The definition of "oppression" also requires "despicable" conduct. (Civ. Code § 3294(c)(2).

The California Supreme Court explained that "the statute's reference to 'despicable' conduct seems to represent a new substantive limitation on punitive damage awards. Used in its ordinary sense, the adjective 'despicable' is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.'" [Citation omitted.] As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found. [Citations omitted.]" (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [emphasis added]). (*See also Lackner v. North* (2006) 135 Cal.App.4th 1188, 1209-1210 [" 'Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.' [Citation.]"].)

Plaintiffs do not contend that the FAC alleges FCA intended to harm or injure Plaintiffs. They cite *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217 for the proposition that "Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences." (*Id.* at 1228.) Following the *College Hospital* decision cited above, the Court in *Angie M.* also held that based on the 1987 amendment to the punitive damages statute, "the statute now requires 'despicable' conduct *in addition to* willful and conscious disregard for a plaintiff's interests. [Citation omitted.]" (*Id.* at 1228.) The Court held the allegations in that case, which stated a claim for unlawful seduction/sexual abuse of a minor in addition to battery, were sufficient to state a claim for punitive damages under the amended definition of malice. (*Id.*)

Plaintiffs make general arguments that punitive damages may be a remedy available for violation of the Song-Beverly Consumer Warranty Act and the Magnuson-Moss Warranty Act. The theoretical availability of punitive damages does not mean that Plaintiffs have alleged facts in the FAC that show malice or oppression as defined in Civil Code section 3294 and construed in the case law to state a claim for punitive damages. The Court does not find the allegations of the FAC sufficient to state a claim for punitive damages based on malice or oppression. The allegations do not rise to the level of "despicable" conduct.

CASE NAME: RAFAEL NEVAREZ MORENO VS. RHETT WHITEHILL

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: STRESS FREE AUTO CARE, INC.

TENTATIVE RULING:

Defendant Stress Free Auto Care, Inc.'s motion to compel arbitration is **denied**.

Plaintiff Rafael Nevarez Moreno filed a class action complaint against Stress Free Auto Care, Inc. (Stress Free) and Rhett Whitehill for various wage and hour violations on December 3, 2024. Defendant Stress Free filed this motion to compel arbitration on July 18, 2025. Plaintiff worked for Stress Free from February 2024 to July 2024. (Comp. ¶12.)

Defendant claims that Plaintiff signed an arbitration agreement on February 24, 2024. The Agreement requires arbitration of employment related claims and includes a class action waiver. The Agreement states that the FAA applies.

Defendant argues that the arbitration agreement applies here and therefore, Plaintiff's individual claims should be sent to arbitration. Defendant also asks that the class claims be dismissed because of the class action waiver included in the arbitration agreement. Plaintiff argues that Defendant has waived the right to compel arbitration and that the evidence does not show that he signed the arbitration agreement.

Arbitration Agreement

"The court's role under the [FAA] is ... limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) "If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms." (*Ibid.*) Likewise, under the CAA, the court must order arbitration unless it determines that "(a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement...." (CCP §1281.2; *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1, et seq. ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 et seq. ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; Code Civ. Proc. 1281, 1281.2, 1290.2.) Arbitration agreements may be invalidated on the same grounds other contracts may be invalidated, including fraud, duress or unconscionability. (*Armendariz v. Foundation Health Psych. Servs., Inc.* (2000) 24 Cal.4th 83, 98.)

"First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.' [Citation.] The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.' [Citation.] Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. [Citations.] For this step, 'it is not necessary to follow the normal procedures of document authentication.' [Citation.]" (*Gamboa v. Northeast Community*

Clinic (2021) 72 Cal.App.5th 158, 165.)

“If the moving party meets its initial prima facie burden... then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [Citations.]” (*Ibid.*)” (See also, *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 840, 846 [employee’s declaration that he did not recall signing the agreement was enough to meet the opposing party’s burden].)

Finally, “[i]f the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party. [Citation.]” (*Gamboa, supra*, 72 Cal.App.5th at 165-166.)

Plaintiff objects that the declaration from Llewellyn is insufficient because he got the dates of Plaintiff’s employment wrong and because he lacks sufficient personal knowledge to authenticate the arbitration agreement. As to the date discrepancy, the arbitration agreement includes the correct date and the Court finds that including the wrong year that Plaintiff started his employment is not a reason to discount the entire declaration. Further, in order to meet the initial prima facie burden, a moving party needs to provide a copy of the arbitration agreement or state its terms. Defendant has met its initial burden providing a copy of the arbitration agreement.

The burden then shifts to Plaintiff. Plaintiff includes a declaration that states during his shift work on February 24, 2024, his manager Whitehill asked Plaintiff to come to the office to complete onboarding paperwork. Plaintiff was given a link that contained a large pdf file with multiple pages to sign. In order to access the documents, Plaintiff entered the company credentials provided by Whitehill into an online platform called Gusto. Plaintiff was told to complete the paperwork right away. He was not told there was an arbitration agreement included with the paperwork and he does not recall signing the arbitration agreement. (Moreno dec. ¶¶4-6, 9.) Plaintiff also states that if he did sign an arbitration agreement, he did not understand what arbitration was until his attorney explained it to him (Moreno dec. ¶10.) Plaintiff also provides a printout from Gusto that shows someone had uploaded or filed documents into Gusto after Plaintiff’s employment ended. (Moreno dec. ¶7 and ex. A.)

Plaintiff’s declaration states that he did not remember signing the arbitration agreement, which is sufficient evidence to challenge the authenticity of the agreement. (*Ruiz, supra*, 232 Cal.App.4th at 840, 846.) In addition, Plaintiff provides evidence that someone else had access to Plaintiff’s Gusto account and three documents were added to Gusto after July 2024, when Plaintiff’s employment ended.

The burden then shifts back to Defendant to provide admissible evidence. Defendant’s Head of People, Llewellyn, provides a declaration that states he has access to Stress Free’s personnel records, which are made in the normal course of business. (Llewellyn dec. ¶12.) Llewellyn states that during Plaintiff’s onboarding process, Stress Free presented him with an arbitration agreement, which Plaintiff signed. (Llewellyn dec. ¶6.) Llewellyn did not provide any details on how he knows that Plaintiff signed the agreement. Plaintiff’s objections to paragraph 6 of Llewellyn’s declaration are

sustained.

In reply, Defendant included its own discovery responses, which are verified by Llewellyn. The relevant responses state that “Plaintiff’s e-mail address used to access his Gusto account is rnevarez25@gmail.com. Defendant does not have any knowledge of its current and former employees’ Gusto account passwords. Therefore, Defendant does not have access to or knowledge of Plaintiff’s login password.” (Cepeda supp. Ex. 7, interrogatory 33.) “During the onboarding process, Plaintiff set-up an user account with Gusto, a human resources software/platform utilized by Defendant, by using his personal e-mail address as his username and creating a password that is, and was at all times during Plaintiff’s employment, unknown to Defendant. Only Plaintiff had access to fill out, sign, and/or upload documents to his Gusto account. Thus, Defendant can only review documents filled out, signed, and/or uploaded to Gusto by its current and former employees, including Plaintiff.” (Cepeda supp. Ex. 7, interrogatory 35.)

Interrogatory answers are admissible when used by “the propounding party or any party other than the responding party”. (Code Civ. Proc., § 2030.410.) “[T]he responding party may not use its own interrogatory responses in its own favor.” (*Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.) Defendant’s interrogatory responses cannot be used to help Defendant meet its burden of showing that Plaintiff signed the arbitration agreement.

Defendant has not met its burden of providing admissible evidence that shows Plaintiff signed the arbitration agreement and therefore, the motion to compel arbitration is denied.

Waiver

“Courts have recognized that where the FAA applies, whether a party has waived a right to arbitrate is a matter of federal, not state, law. [Citations.]” (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963.) When deciding if there has been a waiver of the right to arbitrate, courts consider the following factors: “ ‘(1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether “the litigation machinery has been substantially invoked” and the parties “were well into preparation of a lawsuit” before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; [and] (5) “whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place... ’ ” [Citations.]”

(*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 964.) Previously, a lack of prejudice was considered when deciding waiver, however, courts no longer consider prejudice. (*Id.* at 966; see also, *Morgan v Sundance* (2022) 596 US 411, 419.)

Here, this case was filed on December 3, 2024. Stress Free was served on December 12 and filed their answer on January 13, 2025. This motion was filed on July 18, 2025, approximately six months later. There have been three case management conferences (one heard after this motion was filed) and no motion practice except for this motion. Trial has not been set.

The parties discussed the arbitration agreement a few times between January and March 2025. (Gipson dec. ¶¶ 5-8.) At the April 4 CMC there was some discussion about a potential motion to compel arbitration. (4/4/25 Minute Order; Gipson dec. ¶11.) Plaintiff claims that there was an

additional discussion about whether Defendant would file a motion to compel arbitration at the June 11 CMC, but Defendant would not provide an answer. (Gipson dec. ¶12.) On June 16, Plaintiff served discovery requests. (Gipson dec. ¶15.) On July 18, Defendant served responses which included objections based upon the arbitration agreement. (Gipson dec. ¶16; Cepeda supp dec. ¶2 and ex. 1.)

Here, Defendant consistently and repeatedly informed the Plaintiff and the Court that it might seek to enforce the arbitration clause. Further, while Defendant responded to Plaintiff's discovery, the response included objections based upon the arbitration agreement. Defendant has not engaged in motion practice outside of this motion and did not file a cross-complaint here or propound its own discovery. Considering all the factors, the Court finds that the facts here are insufficient to show waiver of the right to compel arbitration.

None of Plaintiff's cited cases require a different result. The cited cases show that a delay of four to six months, along with substantial motion practice and/or discovery without raising the arbitration issue constitutes waiver. (See, *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal. App. 4th 436, 446; *Adolph v. Coastal Auto Sales, Inc.* (2010) 184 Cal. App. 4th 1443, 1451–52; *Guess?, Inc. v. Superior Court* (2000) 79 Cal. App. 4th 553, 556; *Sobremonte v. Sup. Ct.* (1998) 61 Cal. App. 4th 980, 993.) Finally, in *Augusta v. Keehn & associates* (2011) 193 Cal. App. 4th 331, 338-339 the plaintiff was found to have waived the right to compel arbitration. There, the plaintiff filed a civil complaint, obtained discovery not allowed in arbitration before trying to compel arbitration.

Evidence

Plaintiff's objections to evidence were not number consecutively, however, there are only three objections and the Court has assigned them numbers 1 through 3.

The Court rules on Plaintiff's objections to evidence as follows:

1. Overruled. Defendant's Head of People is permitted to provide the dates of Plaintiff's employment. It does appear, however, that Plaintiff's employment began in 2024, and not 2022.
2. Sustained.
3. Sustained.

11. 9:00 AM CASE NUMBER: C25-00429

CASE NAME: AFONSO INFANTE VS. PALO ALTO NETWORKS, INC.

***HEARING ON MOTION IN RE: VACATE ORDER, SANCTIONS AND STATE BAR REFERRAL**

FILED BY: INFANTE, AFONSO

TENTATIVE RULING:

Plaintiff Alfonso Infante moves for an order (1) vacating and/or reconsidering two orders signed on July 21, 2025 (denying plaintiffs motion to strike defendants' motion to compel arbitration and request for default), and July 22, 2025 (granting defendants' motion to compel arbitration); (2) imposing monetary sanctions against opposing counsel; and (3) referring opposing counsel to the State Bar for disciplinary investigation. The motion was filed July 24, 2025.

Plaintiff argues that the discovery of the representations of counsel made in the course of submitting the two proposed orders for the entry by the Court constitute "new and different facts" under Code of

Civil Procedure section 1008. Alternatively, he seeks relief under Code of Civil Procedure section 473(d) to set aside a void order.

Submission of Proposed Orders

In short, after the court hearing on July 3, 2025, the court adopted the tentative ruling as the order, and defense counsel was directed to prepare an order after hearing. In the process of obtaining plaintiff's review of the proposed order under CRC 3.1312(b), plaintiff asserts that defense counsel misrepresented his objections, and therefore did not comply with the requirement that the order be submitted with "a summary of any responses of the other parties[.]"

The proposed order, as submitted to the Court and as entered, attached a copy of the entire tentative ruling. Plaintiff asserts that the fact that the court entered the orders as submitted (which duplicated the tentative rulings) was due to the misrepresentation of counsel of his position.

Defendant responds that it accurately summarized plaintiff's views and attached a copy of his proposed version of the orders. (Shmygol Dec., Ex. H.) As to the summary of plaintiff's position, the submission stated: "Plaintiff contends the form of the Proposed Order should also include the Court's rulings on evidentiary issues, in addition to attaching the minutes that include the tentative ruling."

The summary did not mislead the Court. Based on the Court's review of the email transmissions between the parties, it accurately describes plaintiff's position. Any doubt about the matter is addressed by the inclusion of plaintiff's proposed order after hearing. Accordingly, the motion to vacate or reconsider the two orders is denied.

Request for Sanctions and Referral to the State Bar.

Defendant also responds that the motion was not timely and that the request for sanctions did not comply with the 21-day safe-harbor notice provision. This appears to be correct. The Court denies the request, however, on the ground that defense counsel committed no sanctionable conduct. For the same reason, the Court denies the request to refer defense counsel to the State Bar.

Other matters

Plaintiff also complains of various actions allegedly taken by defense counsel after the submission of the order, which he claims demonstrate bad faith, and warrant vacating the arbitration order. He also seeks to modify the stay of proceedings. This must be addressed by a separate motion. (Nor is this relief expressly set forth in the mandatory notice of motion.)

Defense evidentiary objections

Because the motion is denied even if all of plaintiff's evidence is admitted, the Court will not rule on the evidentiary objections.

Conclusion

The motion is **denied**.

12. 9:00 AM CASE NUMBER: C25-01598

CASE NAME: ANIL MALIK VS. SETH WIENER

*HEARING ON MOTION IN RE: STAY ACTION PENDING RESOLUTION OF UNDERLYING ACTION

FILED BY: WIENER, SETH W

TENTATIVE RULING:

Before the Court is Defendant Seth W. Wiener, dba Law Offices of Seth W. Wiener ("Defendant")'s motion for an order staying the instant action until resolution of the underlying action, *Malik v. Fierro*, et al. Case No. MSC21-02370. The motion is opposed by Plaintiff Anil Malik ("Plaintiff").

Defendant moves pursuant to CCP § 128(a)(3) and CRC 3.515 on the grounds that the resolution of the issues pending in the underlying case (a construction defect case) from which this case (a legal malpractice action) arises significantly impacts the issues of causation and damages in this case.

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Plaintiff requests judicial notice of two minute orders in Case No. MSC21-02370. The unopposed request is **granted**.

Analysis

Pursuant to CCP §128(a)(3), every court has the power to provide for the orderly conduct of proceedings—which includes the power to put a halt to proceedings in the interests of justice. Courts should consider the interests of the plaintiff in proceeding expeditiously, the burden (if any) on the defendant, the convenience of the court in the management of its cases and the efficient use of judicial resources, and the overarching interest of the public in the pending litigation. (*Avant! Corp v. Superior Court* (2000) 79 Cal.App.4th 876, 884.) When the request for a stay is premised on related litigation in another forum, a court should consider the interests of justice and judicial economy, the cost of multiple and vexatious litigation, any risk of inconsistent rulings, the ability of the litigants to obtain full relief, and the convenience of the parties. (*Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 574-575.) A stay is appropriate where there is a strong probability that issues necessary to a determination of the action would be concluded, in whole or in part, in the other proceeding. (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1373; *Belnap Freight Lines, Inc. v. Petty* (1975) 46 Cal.App.3d 159, 164.)

Defendant argues, relying on *Rosenthal*, that "[s]taying a legal malpractice action is wholly appropriate where proximate cause or damages cannot fully be ascertained until resolution of a related matter." (Mot. at 5:9-11 [citing *Rosenthal v. Wilner* (1988) 197 Cal.App.3d 1327].)

In opposition, Plaintiff argues that "a stay would do nothing more than delay Plaintiff's ability to seek relief arising from Defendant's malpractice." (Opp. at 4:8-9.) This argument is not responsive to Defendant's argument that both causation and damages are implicated by the underlying action.

The court finds that a stay is warranted here pending the outcome of the underlying litigation. (See *Rosenthal, supra*, 197 Cal.App.3d at p. 1331 [""Irrespective of whether *Rosenthal* can establish that [attorney defendants] negligently represented him, he cannot successfully prove that their negligence was the proximate cause of the damages he allegedly sustained until the merits of the [underlying] appeal have been resolved.""]; *Sindell v. Gibson, Dunn & Crutcher*, 54 Cal. App. 4th 1457, 1473 n.11

["since it does appear that the full extent of plaintiffs' damages cannot be determined until the resolution of the pending litigation, the trial court has the inherent authority to stay this action pending that event."] [citation omitted].)

Because the Court grants the motion to stay, the pending motion to strike is off calendar.

A status conference to address the status of the stay and the underlying case is scheduled for March 6, 2026, at 8:30 a.m.

13. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT AGREEMENT ENTERED UNDER DURESS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant Adonica Shaw moves to set aside a judgment entered in an unlawful detainer as the result of a settlement. The settlement, entered July 11, 2025, provided that she would pay back rent and other costs of \$15,443.89, and could remain in possession until September 13, 2025.

The proceeding in question was a court trial, which was preceded by a voluntary settlement conference with a third-party mediator provided by the court. Defendant contends that Plaintiff was represented at the hearing by an attorney for the plaintiff who had not made any formal written appearance. She moves to set aside judgment on the ground it was obtained by "fraud, duress, or other improper means." Specifically, she claims that "this unauthorized representative attempted to strong-arm the defendant into a judgment or agreement without proper notice or opportunity for consultation."

Defendant anticipated the appearance of Christopher Rosseau, the attorney of record. Instead, a different attorney (Jacqueline Prisbylla) from the same firm (Kimbal, Tirey & St. John LLP), appeared. There was no prior or written notice of this "change." Defendant objects to some of the questions asked by Mr. Prisbylla. She further states that "Fearing imminent eviction of myself and my children, I signed the settlement agreement drafted by Ms. Prisbylla. My signature was not a free, knowing, or intelligent assent."

A third-party mediator, Deborah Levy, was present throughout the mediation.

As to the issue of plaintiff's attorney, once a law firm appears on behalf of a client, any attorney from that firm may appear in the case without need of a substitution of counsel. (*Raskin v. Superior Court* (1934) 138 Cal.App. 668, 670, 33 P.2d 35.) Thus, Ms. Prisbylla's appearance was not a "change" in attorneys, which would require compliance with Code of Civil Procedure section 284 and 285.

The fact that defendant was without counsel does not render the judgment improper.

Given the summary nature of unlawful detainer proceedings, defendant may indeed have faced the imminent prospect of losing her home. This is common in unlawful detainer proceedings, and does not by itself render any settlement unlawful or fraudulent, nor does it vitiate defendant's consent.

The circumstances of the agreement, even as set forth by defendant, do not set forth fraud, duress, or other improper means sufficient to permit setting aside the judgment. The motion is **denied**.

14. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR SANCTIONS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant seeks sanctions from plaintiff, largely on the grounds stated in her motion to set aside the judgment. For the reasons explained in denying the motion to set aside the judgment, the motion for sanctions is **denied**.

15. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant moves for leave to file a cross-complaint.

A cross-complaint is generally not permitted in an unlawful detainer. (*Vella v. Hudgins* (1977) 20 Cal. 3d. 251, 255.) Defendant relies on cases that state that after a tenant vacates the premises, they may seek affirmative relief that otherwise would not have been available in an unlawful detainer proceeding. (*Duncan v. Kihagi* (2023) 96 Cal.App.5th 703, 709.) In this case, however, the removal of possession as an issue was accomplished through entry of a final judgment in the entire case. Moreover, where a cross-complaint is permitted, “[l]eave may be granted in the interest of justice at any time *during the course of the action*.” (CCP § 428.50, emphasis added.) Because final judgment has been entered, it is no longer “in the course of the action.”

16. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FILED TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY:
TENTATIVE RULING:

Defendant seeks to compel responses to a set of Requests for Production of Document. The requests were served on July 31, 2025. Judgment was entered (by stipulation) on July 11, 2025. Defendant argues the discovery is relevant to determining that the three-day notice to pay rent or quit was never properly served. Defendant argues that the discovery is relevant to her proposed cross-complaint. The motion for leave to file a cross-complaint has been denied, however. Thus, the discovery in question is not directed at any claim presently before the Court. Moreover, the motion to compel production was filed on July 31, 2025, the same day the discovery requests were served. Thus, the **motion was filed too early**.

17. 9:00 AM CASE NUMBER: MSC21-00549
CASE NAME: ON DECK CAPITAL VS. RUDNICK
*HEARING ON MOTION IN RE: JUDGMENT
FILED BY: ON DECK CAPITAL, INC., A DELAWARE CORPORATION
TENTATIVE RULING:

Granted. The moving papers establish adequate grounds. There is no opposition.

18. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
TENTATIVE RULING:

Continued to July 23, 2026, pursuant to stipulation and order entered December 1, 2025.

19. 9:00 AM CASE NUMBER: MSC21-01298
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY:
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

20. 9:00 AM CASE NUMBER: MSC21-02630
CASE NAME: STATE FARM GENERAL VS BMW OF NORTH AMERICA
*HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL AND TO TAX COSTS;
MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF REBEKKA R. MARTORANO
FILED BY: BMW OF NORTH AMERICA, LLC
TENTATIVE RULING:

Defendants move to stay this action pending appeal, or in the alternative to tax plaintiffs' costs. Plaintiffs prevailed at trial and defendants have appealed. The matter is stayed pending appeal pursuant to Code of Civil Procedure sections 916 through 919, except that "the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Plaintiffs waived an undertaking for appeal of the judgment.) The only matters in question at this point are plaintiffs' cost bill and defendants' motion to tax costs, which arguably fall within the exception to the automatic stay. Defendants ask that the action be stayed, so they do not have to unnecessarily litigate the costs issues in the event they prevail in their underlying appeal. Plaintiffs do not expressly oppose the request. The costs issue involves not simply the reasonableness of costs, but contested issues concerning the proper application of offers to compromise under Code of Civil Procedure section 998. All things considered, it is better not to litigate that issue unless made necessary by the ultimate decision on appeal. The motion to stay is **granted**.

21. 9:00 AM CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEEZEY

***HEARING ON MOTION IN RE: TO COMPEL REQUEST FOR ADMISSIONS**

FILED BY: SWEEZEY, MELISSA K

TENTATIVE RULING:

Defendant Melissa Sweezy moves to compel further responses to her requests for admissions. Plaintiff raised a number of responses, including that it is a repeat of a motion to compel requests for admission that previously was denied by the Commissioner, that defendant did not meet and confer, and that the motion is untimely.

On February 7, 2025, defendant served plaintiff with 56 requests for admission (in question form). On March 8, 2025, plaintiff served verified responses, which included some objections. On May 14, 2025, Defendant filed with the court a motion to compel further responses to requests for admission. Defendant's proof of service, filed June 6, 2025, attests that the motion and supporting papers were served on May 11, 2025. Code of Civil Procedure section 2033.290(c) provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission." Accordingly, notice of the motion had to be served 45 days from March 8, i.e., April 22, 2025. Defendant does not assert that she was given an extension to file the motion. Accordingly, the **motion is not timely and is denied**.

22. 9:00 AM

CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEEZEY

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT DISMISS THE CASE PURSUANT TO CCP 438

FILED BY:

TENTATIVE RULING:

Before the Court is an order to show cause why this case should not be dismissed pursuant to Code of Civil Procedure section 438. For the reasons set forth, the Court (a) **grants** judgment on the pleadings as to the complaint on the ground the complaint fails to allege facts sufficient to state a cause of action (Code Civ. Proc. §§ 438(b)(2) and 438(c)(3)(B)(ii)), **with leave for Plaintiff to amend his complaint**; and (b) discharges the order to show cause based on this ruling. Plaintiff shall file his amended complaint and serve defendant **by December 19, 2025**.

The Court hereby sets a further case management conference for March 3, 2026, 8:30 a.m. Plaintiff shall file and serve written notice of the further case management conference on defendant.

Background

Plaintiff Antonio Virelas filed his complaint initiating this action on February 6, 2022. Defendant Melissa Sweezy has answered. The parties are both unrepresented.

Plaintiff filed an issue conference statement on July 7, 2025. On July 25, 2025, the Court held an issue conference at which the parties appeared. The Court considered the complaint and indicated its concerns regarding whether the complaint alleged facts to state a cause of action and support the relief sought. The Court informed the parties that it would issue an order to show cause ("OSC") as to

why the case should not be dismissed and set a briefing schedule and a hearing date of December 4, 2025.

Plaintiff timely filed his briefing in response to the OSC on October 23, 2025, before the October 27, 2025 deadline, and filed a proof of service showing service of the response and proposed first amended complaint on Defendant. Defendant did not file a response to Plaintiff's response to the OSC by the due date of November 10, 2025, or at any time up to the date this tentative ruling was prepared.

Legal Standards Governing Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits the Court on its own motion to grant a motion for judgment on the pleadings if the Court finds that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(2) and 438(c)(3)(B)(ii).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439; *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]".]) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.) "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408 [emphasis added, citing *Baughman v. State of California* (1995) 38 Cal.App.4th 182, 187].)

Analysis

A. Summary of Plaintiff's Complaint Allegations

Plaintiff's complaint alleges a single cause of action for breach of an implied agreement. He alleges he and defendant Melissa Sweezey began cohabitating in 2007. Defendant had three children from prior marriages, and in 2008, she and Plaintiff had a daughter. After Defendant obtained a job at Omnivision in 2011, they verbally agreed that Plaintiff would "manage the household" and Defendant would "manage the family finances." He alleges they pooled money to buy a home in 2012, that he performed renovations on the home and devoted most of his time to providing care for their daughter and Defendant's disabled son, and that he became financially dependent on Defendant.

Plaintiff alleges the parties conducted themselves out as a married couple, and they pool their "talents, efforts, and assets. On February 19, 2020, Defendant sought and obtained a domestic violence restraining order against Plaintiff, and pursuant to that order, Plaintiff was removed from their home on March 2, 2020, which Plaintiff alleges was the date Defendant "breached [their] verbal and implied agreement." He alleges shortly after that date, she began living with another man. He alleges she breached their oral and implied contract to cohabituate by "being unfaithful, fabricating domestic violence allegations to end" their relationship and begin a new one with a different partner.

The complaint alleges "legal authority" referring to a "civil partnership" and "rights and obligations of cohabitants act 2010." The legal authority set forth does not appear to be California law or consistent

with California authority governing the relationship and claims Plaintiff is trying to assert.

B. Marvin Relationship and Implied Oral Contract

The elements of a cause of action for breach of contract consist of "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) As to the first element, the existence of a contract, an enforceable contract may be oral and may be implied in fact. (Civ. Code §§ 1619 [contract may be express or implied], 1621 [implied contract] and 1622 [oral contract].)

Plaintiff alleges in the operative complaint that the parties orally and impliedly agreed to cohabitate, pool assets, and divide financial and household duties during the thirteen years they cohabitated. Based on the allegations of the complaint, the "breach" of the agreement alleged in the complaint is Defendant's decision to terminate their relationship and to cease cohabitating with Plaintiff. The complaint does not allege Plaintiff and Defendant were married or registered domestic partners under the Family Code, such that their relationship is governed by California contract law. (*See Marvin v. Marvin* (1976) 18 Cal.3d 660, 665, 668, 674 [plaintiff based her cause of action in contract, stating cohabitating adults are "as competent as any other persons to contract respecting their earnings and property rights," that "they may agree to pool their earnings and to hold all property acquired" in their relationship as under community property law or may agree that their earnings and property acquired with their earnings remain each party's separate property; the Family Law Act does not apply to unmarried partners].)

In response to the OSC, Plaintiff contends he is attempting to allege a claim based on the California Supreme Court's *Marvin v. Marvin* decision. That decision held that unmarried cohabiting couples may enforce express or implied contracts relating to a division of property or support and holds that a court may employ equitable doctrines such as quantum meruit to compensate a homemaking partner for services rendered. The decision also holds that the Family Law Act (Civ. Code, § 4000 et seq.), which includes provisions for the division of marital property, does not apply to unmarried partners.

The complaint as presently pled, however, fails to allege sufficient facts to state a *Marvin* cause of action or a right to relief based on an actionable breach of an oral or implied agreement. As pled, the complaint alleges what the parties agreed to do while they cohabitated, and Plaintiff does not allege that Defendant failed to perform as agreed during the period of their cohabitation by managing their finances and providing financial support by working while the parties continued to cohabitate. As presently alleged, Plaintiff asserts breach based on Defendant's decision to terminate their cohabitation arrangement and begin a new relationship approximately two weeks after she sought and obtained a domestic violence restraining order against Plaintiff. Plaintiff has not cited any law, and the Court is not aware of law, that precludes a party in an intimate relationship from terminating that relationship at will. (*See generally Whorton v. Dillingham* (1988) 202 Cal.App.3d 447, 457.) A contract with no express duration is generally terminable at will with reasonable notice. (*See, e.g., Consolidated Theatres, Inc. v. Theatrical Stage Emp. Union, Local 16* (1968) 69 Cal.2d 713, 727-728.) The complaint does not allege an actionable breach of contract as currently pled.

Perhaps in recognition of the deficiencies in the operative complaint, Plaintiff's response to the OSC includes a proposed first amended complaint which alleges five causes of action, including breach of

oral (express) contract, breach of implied contract, breach of fiduciary duty, quantum meruit, and unjust enrichment. Most of the theories of relief are ones which *Marvin* and subsequent "palimony" decisions have found can be viable depending upon the facts alleged and ultimately proven. (See *Marvin v. Marvin, supra*, 18 Cal.3d at 674-675 [property agreements between cohabitants], and 684-685 [breach of oral or implied promise, quantum meruit]; *Whorton v. Dillingham, supra*, 202 Cal.App.3d at 453-455 [independent consideration of services for agreement to provide support separate from any sexual services, if proven, could support contract claim by cohabitant]; *Maglica v. Maglica* (1998) 66 Cal.App.4th 442, 447-452 [breach of fiduciary duty and quantum meruit].)

The Court makes no determination on this OSC whether the proposed first amended complaint allege sufficient facts to state all of the causes of action pled, but the Court finds the proposed first amended complaint is sufficient to show that if given leave to amend, Plaintiff may be able to state sufficient facts to support one or more causes of action based on the more extensive allegations of the proposed amended complaint. The Court therefore **grants** the judgment on the pleadings as to the pending complaint, **with leave to amend**.

23. 9:00 AM CASE NUMBER: MSC22-00329

CASE NAME: MARTINEZ VS LIMON LOCUST

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURT**

FILED BY:

TENTATIVE RULING:

Plaintiff Maria Vejar Martinez moves for final approval of her class action and PAGA settlement with defendant Limon Locust LLC.

A. Background and Settlement Terms

Defendant operates a restaurant in Walnut Creek. Plaintiff was employed there, though her dates of employment and job description are not given.

The original complaint was filed on February 10, 2022, as a class action. PAGA claims were added by later amendment.

As initially proposed, the settlement created a gross settlement fund of \$140,000. The class representative payment to the plaintiff would be \$10,000. Attorney's fees would be \$46,667 (one-third of the settlement). Litigation costs would not exceed \$12,000. The settlement administrator's costs are estimated at \$10,000. PAGA penalties would be \$20,000, resulting in a payment of \$15,000 to the LWDA. The net amount paid directly to the class members would be about \$46,333, not including distribution of PAGA penalties. The fund is non-reversionary. There are an estimated 270 class members. Based on the estimated class size, the average net payment for each class member is approximately \$172. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of weeks worked during the relevant time. The number of aggrieved employees for PAGA purposes is smaller, because the starting date of the relevant period is later.

The entire settlement amount will be deposited with the settlement administrator within 7 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employees employed at Defendants' California facilities between February 18, 2018, and now. For PAGA purposes, the period covered by the settlement is February 9, 2021 to now.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

A list of class members will be provided to the settlement administrator within 14 days after preliminary approval. The administrator will use skip tracing as necessary. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Settlement checks not cashed within 180 days will be cancelled, and the funds will be directed to the controller's unclaimed property fund.

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ("A court cannot release claims that are outside the scope of the allegations of the complaint.") "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal discovery was undertaken, resulting in the production of substantial documents. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. For example, much of plaintiff's allegations centers on possible off-the-clock work, including missed or skipped meal breaks and rest breaks. Defendant, however, pointed out that its formal policies prohibit off-the-clock work, and asserted that it would have had no knowledge of employees beginning work before punching in or continuing after punching out. Further, it argued that it was required to make meal and rest breaks available, but not required to ensure that they be taken, so long as no employer policy prevented or discouraged taking such breaks. The complaint also argues violations of rounding of hours, though defendant contends there was no such rounding and if there had been, it would have been neutral in net effect. It also alleges that there were split shifts and times when employees were required to report but then sent home. Defendant denies the allegations, saying they resulted from volunteering for extra shifts. Furthermore, the fact-intensive character of such claims would have presented a serious obstacle to class certification.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code § 2699(e)(2) (PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.")) Moreover, recent decisions may make it difficult for PAGA plaintiffs to recover statutory penalties, as opposed to actual missed wages. (See, e.g., *Naranjo v. Spectrum Security Services, Inc.* (2024) 15 Cal.5th 1056.)

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

The road from preliminary approval to this hearing has not been smooth. On November 21, 2024, the Court granted preliminary approval of the proposed class action settlement in this matter. The Order

After Hearing was not approved by the Court until March 5, 2024. The hearing on the motion for final approval was set for May 8, 2025. On April 11, 2025, the parties stipulated, and the Court ordered, that the notice schedule be changed and the final approval hearing be continued to June 26, 2025. At that hearing, counsel for plaintiff reported that the terms of the settlement were not being carried out. The Court directed plaintiff's counsel to file a motion to enforce the settlement, and set a Status Conference for July 25, 2025. At that Status Conference, counsel for each side reported that the parties had resolved their issues. The Court then set a motion for final approval for October 30, 2024. The Court continued that hearing to December 4, 2025.

The settlement administrator obtained the class list and workweek data, and found that the escalator clause was triggered, and the gross settlement amount increased by 72.80% or \$101,915.86, creating a new Gross Settlement of \$241,915.86. Class member names totaled 320. Notice packets were mailed on August 5, 2025. 92 notice packages were returned. Follow-up resulted in 32 new addresses, which were mailed to the newly found addresses. 61 notice packages are deemed undeliverable. As of the September 19 deadline, no objections and no requests for exclusion from the class were received.

Based on the amounts reconfigured after the application of the escalator clause, the new Net Settlement amount is \$114,664.46. The attorney's fees are \$80,638.63 (1/3 of the Gross Settlement Amount), litigation costs of \$8,662.78, the representative Service payment of \$10,000, administration expenses of \$6,950, the payment of \$15,000 to the LWDA and the \$5,000 share of the PAGA penalties payable to Aggrieved Employees. Based on the revised figures, the average payment to the 320 class members is \$361.45.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees". (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "The court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "Where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award was not be considered at the preliminary approval stage, but only as part of final approval. Moreover, given the application of the escalator clause, the size of the recovery, and thus the amount of the fee (1/3 of the settlement), has substantially increased.

For final approval, counsel have calculated a lodestar fee amount as the Court directed. The lodestar is \$69,862.40, which is based on 122.60 hours at hourly rates ranging from \$473 to \$948. Most of the hours are billed at \$581. This results in an implied multiplier of 1.15. No adjustment is necessary, and the fees in the amount of \$80,638.62 are found reasonable and are approved.

Litigation costs of \$8,662.78 are reasonable and are approved.

Settlement Administration costs of \$6,950 are reasonable and are approved.

The requested representative payment of \$10,000 for the plaintiff is reviewed under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07. Ms. Martinez attests that she worked on the case, although she does not estimate the hours. She entered into a release broader than the class as a whole, but she does not indicate that she had any other claims of value. She also states that being a named plaintiff could make it harder to find employment in the current industry in which she works. All things considered, the Court approves the \$10,000 payment.

D. Discussion and Conclusion

The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**.

Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.